



REPUBLIC OF THE PHILIPPINES
DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS
ZAMBALES 2ND
DISTRICT ENGINEERING OFFICE
REGIONAL OFFICE III
Castillejos, Zamboales



JAMJLE PROPERTIES (SUBIC)
AND DEVELOPMENT CORPORATION
By: Party of the Second Part

JOSE TOMAS S. ESCALONA, JR.
Owner

ABIGAIL JOY D. SUN
Accountant III
(Witness)

AMADOR B. ALQUEZA
Chief, Construction Section
(Witness)

ROSBE S. DIZON
District Engineer

REPUBLIC OF THE PHILIPPINES
Department of Public Works and Highways
By: Party of the First Part

CONTRACT AGREEMENT

THIS AGREEMENT, made this 15th day of February, 2024, between **Department of Public Works and Highways Zamboales 2nd District Engineering Office** with office address at Castillejos, Zamboales, represented by **ROSBE S. DIZON – District Engineer** (hereinafter called the "Entity") and **JAMJLE PROPERTIES (SUBIC) AND DEVELOPMENT CORPORATION**, with office address at Subic, Zamboales, represented by **JOSE TOMAS S. ESCALONA, JR. – Owner** (hereinafter called the "Contractor").

WHEREAS, the Entity is desirous that the Contractor execute **24CM0001 – Flood Management Program – Construction/ Rehabilitation of Flood Mitigation Facilities within Major River Basins and Principal Rivers, Rehabilitation of Kalaklan River, Olongapo City** (hereinafter called "the Works") and the Entity has accepted the Bid for **Ninety-Four Million Three Hundred Eighty-Four Thousand Two Hundred Twenty-Eight pesos and 26/100 only (P/ 94,384,228.26)** by the Contractor for the execution and completion of such Works and the remedying of any defects therein.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

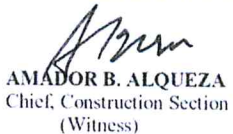
1. In this Agreement, words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract hereinafter referred to.
2. The following documents as required by the 2016 revised Implementing Rules and Regulations of Republic Act No. 9184 shall be deemed to form and be read and construed as part of this Agreement, viz:
 - a. Philippine Bidding Documents (PBDs);
 - i. Drawings/ Plans;
 - ii. Specifications;
 - iii. Bill of Quantities;
 - iv. General and Special Conditions of Contract;
 - v. Supplemental or Bid Bulletins, if any;

24CM0001 – Flood Management Program – Construction/ Rehabilitation of Flood Mitigation Facilities within Major River Basins and Principal Rivers, Rehabilitation of Kalaklan River, Olongapo City




ROSBE S. DIZON
District Engineer

OK As To Availability Of Funds:


AMADOR B. ALQUEZA
Chief, Construction Section
(Witness)


ABIGAIL JOY D. SUN
Accountant III
(Witness)


JOSE TOMAS S. ESCALONA, JR.
Owner

b. Winning bidder's bid, including the Eligibility requirements, Technical and Financial Proposals, and all other documents or statements submitted;

Bid form, including all the documents/statements contained in the Bidder's bidding envelopes, as annexes, and all other documents submitted (e.g., Bidder's response to request for clarifications on the bid), including corrections to the bid, if any, resulting from the Procuring Entity's bid evaluation;

c. Performance Security;

d. Notice of Award of Contract and the Bidder's conforme thereto; and

e. Other contract documents that may be required by existing laws and/or the Procuring Entity concerned in the PBDs. Winning bidder agrees that additional contract documents or information prescribed by the GPPB that are subsequently required for submission after the contract execution, such as the Notice to Proceed, Variation Orders, and Warranty Security, shall likewise form part of the Contract.

3. In consideration for the sum of **Ninety-Four Million Three Hundred Eighty-Four Thousand Two Hundred Twenty-Eight pesos and 26/100 only (P/ 94,384,228.26)** or such other sums as may be ascertained, **JAMJLE PROPERTIES (SUBIC) AND DEVELOPMENT CORPORATION**, agrees to implement and complete the construction of Flood Management Program – Construction/ Rehabilitation of Flood Mitigation Facilities within Major River Basins and Principal Rivers, Rehabilitation of Kalaklan River, Olongapo City within **Three Hundred Fifteen (315) calendar days** in accordance with his/her/its Bid.

4. The **Department of Public Works and Highways Zambales 2nd District Engineering Office** agrees to pay the above-mentioned sum in accordance with the terms of the Bidding.

24CM0001 – Flood Management Program – Construction/ Rehabilitation of Flood Mitigation Facilities within Major River Basins and Principal Rivers, Rehabilitation of Kalaklan River, Olongapo City



IN WITNESS whereof the parties thereto have caused this Agreement to be executed the day and year first before written.

**REPUBLIC OF THE PHILIPPINES
DEPARTMENT OF PUBLIC WORKS
AND HIGHWAYS ZAMBALES 2ND
DISTRICT ENGINEERING OFFICE**

**JAMJLE PROPERTIES (SUBIC)
AND DEVELOPMENT
CORPORATION**

(PARTY OF THE FIRST PART)

BY:


RDSB S. DIZON
District Engineer

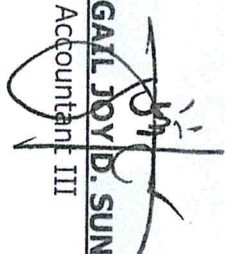
(PARTY OF THE SECOND PART)

BY:


JOSE TOMAS S. ESCALONA, JR.
Owner


AMADOR B. ALOUEZA
Chief, Construction Section
(Witness)

O.K. AS TO AVAILABILITY OF FUNDS:


ABIGAIL JOY D. SUN
Accountant III

24CM0001 – Flood Management Program – Construction/ Rehabilitation of Flood Mitigation Facilities within
Major River Basins and Principal Rivers, Rehabilitation of Kalaklan River,
Olongapo City

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Tel. No(s): (047) 610 9233



OK As To Availability Of Funds:

JAMJLE PROPERTIES (SUBIC)
AND DEVELOPMENT CORPORATION
By: Party of the Second Part

JOSE TOMAS S. ESCALONA, JR.
Owner

REPUBLIC OF THE PHILIPPINES

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ACKNOWLEDGEMENT

BEFORE ME, as the Notary Public for and within the Province/City, Castillejos, Zambales, personally appeared, **ROSBE S. DIZON, District Engineer** representing the **REPUBLIC OF THE PHILIPPINES (Department Of Public Works And Highways Zambales 2nd District Engineering Office)**, with **Community Certificate No. 06972935** issued on January 2, 2024 at Olongapo City and **JOSE TOMAS S. ESCALONA, JR. – Owner** representing **JAMLE PROPERTIES (SUBIC) AND DEVELOPMENT CORPORATION** with **Community Certificate No. 06973397** issued on January 4, 2024 at Olongapo City, known to be the same persons who executed the foregoing **CONTRACT** and **AGREEMENT** and they acknowledged to me that the same is their true act and deed for and in behalf of the parties they represented.

This instrument consists of four (4) pages, including this page, on which this acknowledgement is written duly signed by the contracting parties and their witnesses on the left margin of the other pages.

IN WITNESS WHEREOF, I have hereunto affixed my Signature and Official Seal this 15th day of February, 2024.

(Notary Public)

Doc. No. _____
Page No. _____
Book No. _____
Series of 2024 _____

DORANTINO X FLORESTA
NOTARY PUBLIC
UNITE STATES OF AMERICA
NOTARIAL COMMISSION NO. 2022-0-79
OLINGUE, CALIFORNIA
FIR REG. NO. 11-1-0-2024
EXP. DATE 1-8-2024
R.F.L. OR ATTORNEY NO. B4253
C/O KYLE AND ERIKA GONZALES CATY

24CM0001 – Flood Management Program – Construction/ Rehabilitation of Flood Mitigation Facilities within Major River Basins and Principal Rivers, Rehabilitation of Kalaklan River, Olongapo City